Version 1.0

AGREEMENT No:

Annual Maintenance Contract

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NIHVA TECHNOLOGIES PVT. LTD. * PUNE *

Version 1.0

AGREEMENT No:

This Annual Maintenance Contract ("**Agreement**") is entered into on this the Thirteenth day of November, Two Thousand and Twenty (13/11/2020) at Bangalore by and between

IKEA India Private Limited, a private limited company incorporated under the provisions of Companies Act, 2013, with corporate identity number - U52399DL2013FTC256222, having its registered office at Unit No. 421, DLF Tower 'A', Jasola District Centre, New Delhi - 110044, INDIA (**"IKEA"** or "**IKEA Company**")

and

Nihva Technologies Private Limited, a Private limited company, having its registered office at 187, G-Block, 1st Floor, Thermax Chowk, MIDC, above Renault Showroom, Chinchwad, Pune - 411019 INDIA (**"Supplier"** or "**Service Provider**")

Supplier / Service Provider and **IKEA Company** individually referred to as a Party and collectively referred to as Parties

WHEREAS;

(A) Service Provider is engaged in the supply & installation of "Dock levellers & Rolling shutters, Door automation solutions & Water management solutions"

(B) IKEA Company desires to be provided with and acquire such services from Service Provider as set forth below

(C) Service Provider is willing to provide such services to IKEA Company on the terms and conditions stated herein

NOW, THEREFORE, the Parties have entered into the Agreement on the terms and conditions herein stated.

1. DEFINITIONS

1.1. **"Maintenance Services"** means that service provider will provide it's services to maintain the quality of the product as defined in the appendix and improve the quality of services in case of any deficiency in the services

1.2. **"INGKA Group"** shall mean any and all companies ultimately owned, directly or indirectly, by Ingka Holding B.V. and "IKEA Company/IKEA Companies" shall mean any company/companies within INGKA Group.

1.3. **"Confidential Information"** means any and all tangible and intangible information disclosed herein, including but not limited to: data, specifications, standards and know-how of any nature such as technical, scientific, engineering, commercial, financial, marketing or organizational, which (i) is marked as "confidential, "proprietary" or with some similar indication; (ii) is expressly advised by the disclosing Party to be confidential through some contemporaneous oral or written means; or (iii) which the receiving Party would reasonably construe to be of a confidential nature considering the circumstances of its disclosure and/or the nature of the information. The definition of Confidential Information shall, however, not include information which (i) at the time of disclosure is part of the public domain, or which thereafter comes into the public domain through no fault of the receiving Party, (ii) at the time of disclosure was already in the possession of the receiving Party, as evidenced by written records (iii) was developed by employees

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or agents of the receiving Party independently of and without reference to any Confidential Information communicated to the receiving Party and (iv) which is properly received by the receiving Party from a third Party which has the right to disclose such information.

1.4. **"Intellectual Property Right"** means any and all intellectual and industrial property rights, whether possible to register or not, including, without limitation, patents, registered and unregistered design rights, copyrights, trademarks, business names, trade names, service marks, utility marks, database rights, all extensions and renewals to any of them and any applications for any of them and any right or form of protection of a similar nature having equivalent or similar effect to any of them, which may subsist anywhere in the world belonging to IKEA or any IKEA Company.

1.5 **"Annual Maintenance Service"** means the service which would be provided by the "Service provider"

2. GENERAL

2.1. Service Provider agrees to provide an Annual Maintenance of the product and services to IKEA Company and IKEA Company agrees to receive the Maintenance of the Products and Services, as hereinafter further set forth.

2.2. Service Provider shall inform IKEA Company of any subcontractor used to provide any Services. Service Provider shall not be entitled to appoint sub-contractors for the delivery of the Services, without the prior written consent of IKEA Company. Service Provider shall replace any such subcontractor at IKEA Company's reasonable request. Service Provider shall remain liable for the acts and omissions of any sub-contractor to the same extent as Service Provider is liable for its own actions and omissions under the Agreement.

2.3. The details of the Maintenance Services to be provided to IKEA Company hereunder by Service Provider and the timing and method for such provision are as set forth in Appendix 1 hereto; provided, however, that IKEA Company may from time to time request the Maintenance services additional to those specified in the Appendix 1 which are reasonably related to the Services, to be performed at mutually agreed terms.

3. PURCHASE ORDERS AND SPECIFICATION

3.1. A Purchase Order may be executed in written or electronic form, or as otherwise specified in the Specification, and shall be confirmed by Service Provider and returned to IKEA Company without delay.

3.2. Service Provider shall provide the Maintenance Services in accordance with the Specification and shall within its defined limits include what is required so that the Maintenance Services shall have the operating characteristics and performance specified in the Specification. The Maintenance Services shall be timely delivered in the agreed manner. Any part/consumable outside the scope of work as specified under this Agreement or its Annexures shall be charged and payable extra.

3.3. Each IKEA Company shall remain solely liable for its responsibilities and obligations as a result of its purchases under a Purchase Order. Nothing in the Agreement or

any Purchase Order thereunder shall (i) be construed as a responsibility or warranty by IKEA Company in relation to Service Provider with respect thereto (except to the extent IKEA Company has placed such Purchase Order) or (ii) prevent IKEA Company from purchasing any products or services from any Service Provider other than Service Provider.

3.4. Any company within the INGKA Group may, at its own discretion, independently receive the Maintenance services from Service Provider on no less favourable terms and conditions than as set forth in this Agreement, by entering into a separate Agreement with Service Provider. Any order placed by IKEA Company hereunder as well as any order placed by any such company under any such separate Agreement referring to the terms and conditions of this Agreement shall, for the purpose of computation of volume discounts etc., be deemed to be included in one single annual volume summary, to the benefit of INGKA Group. Any such company within the INGKA Group receiving Maintenance Services under a separate Agreement referring to this Agreement shall remain solely liable for its liabilities and obligations as a result thereof and the Parties agree that IKEA Company shall not assume any kind of liability with respect to such orders. Service Provider undertakes to use best efforts to inform any company within INGKA Group, which approaches Service Provider in order to discuss a potential arrangement regarding the Maintenance services, of the existence of this Agreement.

4. PRICES

4.1. The Prices are fixed during the fixed period, as defined in Appendix 1. After the fixed period, a request for revision of prices must be received by the other Party at least sixty (60) calendar days prior to the requested date of applicability. All price adjustments shall be clearly specified and documented, including information about the causes for the adjustment. The Prices latest agreed upon will apply until the Parties have agreed upon new prices. Either Party may terminate this Agreement by giving ninety (90) calendar days written notice, in the event the Parties should fail to agree upon new prices after the fixed period as stipulated in Appendix 1.

4.2. Payment shall be made within thirty (30) days from the receipt of correct invoice, subject to the performance and acceptance of the Maintenance Services, except for invoices disputed in whole or in part by IKEA Company, acting in good faith.

5. DEFECTS OR DELAY

5.1. IKEA Company shall notify Service Provider in writing of any defects that have appeared in the Services, including a description of the defect. Services that deviate from the Warranties in Section 7 shall be considered defective.

5.2. Subject to clause 5.5 of this Agreement, Service Provider shall promptly (and within the specific time frame, if any, set out in the Specification) remedy the defective services at its own risk and cost, by repair, replacement or re-performance (if re-performance is reasonably convenient to IKEA Company and provides an adequate remedy of the defect). IKEA Company shall further be entitled to compensation for damages, costs and expenses within the limitations set out in Section 8. However, the costs and expenses, in such event, shall be incurred by the Service Provider only where the defective services are attributable to Service Provider.

5.3. If, as determined by IKEA Company (i) Service Provider does not fulfil its obligations under Clause 5.2, or (ii) the defect is substantial or vital to IKEA Company, or (iii) the defect is of repeated or serial nature, IKEA Company may cancel, by written notice and without any compensation to Service Provider, any Purchase Order. However, IKEA shall be liable to pay the fees for the Services, already rendered by Service Provider and accepted by IKEA. The Service Provider shall also refund any payments made under such Purchase Order/s to the extent relating to the Maintenance services not yet delivered in accordance with the Specification.

5.4. In case of delay in delivery, Service Provider shall, for each commenced working day of delay, be liable to pay liquidated damages ("**Liquidated Damages**") amounting to 1 per cent (1%) of the full price to be paid under the Purchase Order up to a maximum of 10 per cent (10%) of the full price to be paid under the Purchase Order. If the delay exceeds 20 working days, IKEA Company shall be entitled to completely or partly cancel the Purchase Order affected by the delay or non-performance without compensation to Service Provider except for the services rendered. The payment of liquidated Damages does not preclude the claiming of damages exceeding such amount. Payment of liquidated Damages shall not relieve Service Provider of its obligations it may have under this Agreement.

5.5. This Agreement and/or its parts thereof excludes maintenance or repair of damage resulted from accident, misuse, neglect, negligence, wilful or intentional acts, repair or alterations by unauthorised personnel, failure to operate within performance specifications, or failure to operate according to instructions and documentation, at the discretion of Service Provider.

6. INTELLECTUAL PROPERTY RIGHTS AND INFRINGEMENT

6.1. All ideas, materials or documents developed by Service Provider in connection with performing Services shall be the exclusive property of IKEA Company and all intellectual property rights including, but not limited to, trademark rights and copyright shall be vested in IKEA Company. Upon termination or expiration of this Agreement, Service Provider shall return all such materials to IKEA Company and, if IKEA Company deems it necessary, Service Provider shall cooperate with IKEA Company in the registration of such materials under IKEA Company's name.

6.2. Service Provider shall be solely responsible for any infringement in any intellectual property right of third Party and undertakes to indemnify and hold harmless IKEA Company from and against any and all damages, costs and expenses (including reasonable attorneys' fees) incurred as a result of any claim or proceeding brought by any third Party against IKEA Company or any IKEA Company based on a claim that the services or the use thereof constitute an infringement of any third Party intellectual property rights (including but not limited to trademarks, copyright, patent and rights to design), whether registered or not.

7. WARRANTY

7.1. Service Provider warrants that:

i. the Maintenance services conform to the Specification, as applicable, and with any other instructions given under this Agreement or any Purchase Order;

ii. that the Maintenance Services comply with all relevant national (including federal, state/provincial and local) and international laws, conventions, regulations and provisions applicable;

iii. it holds possession of and maintains all necessary licences, permissions and consents in order to provide the services;

iv. it will at all times comply with Appendix 2, INGKA Group Business Ethics Principles; and that no restrictions whatsoever shall apply to IKEA Company's use of the services (or results thereof), except to the extent expressly stated in the Specification. If included in the Agreement as Appendix 3, Service Provider further warrants to comply with the IKEA Way on Purchasing Material, Products & Services, Compliance Commitment ("**ICC**") and IKEA IWAY Standard, Minimum Requirements for Environment and Social Working Conditions when Purchasing Products, Materials and Services ("**IWAY**").

8. LIABILITY, INDEMNIFICATION AND INSURANCE

8.1. Service Provider shall be liable towards IKEA Company for any direct damages, costs and losses incurred due to its gross negligence or breach of this Agreement or any Purchase Order and shall compensate IKEA Company for any such damage, cost or loss.

8.2. Service Provider agrees to indemnify and hold IKEA Company harmless from any claim of injury, damages, losses or any other harm (a "**Claim**") as a result of the provision of the Maintenance Services hereunder except to the extent such Claim results from the negligence or wilful misconduct of IKEA Company.

8.3. Neither Party shall be liable for loss of income, profit, goodwill or any other consequential, incidental or indirect loss or damage of any kind whatsoever, except where the defaulting Party is liable for (i) gross negligence or wilful misconduct, (ii) damages arising due to personal injury or death, (iii) liability according to mandatory law, (iv) indemnification according to Section 8.2 and/or Section 6 and/or any indemnity set out in the Specification or (v) breach of Sections 9 and/or 10.

8.4. Notwithstanding anything contained herein this Agreement, the entire liability of the Service Provider for any and/or all losses or damages or injuries to IKEA Company arising out of this Agreement, shall never exceed the total consideration received by the Service provider under this Agreement towards annual service charges in respect of an equipment causing loss or damage. Further, neither Party shall be liable for any indirect and/or consequential damages including third party damages.

8.5. Service Provider shall secure that its business operations are covered by appropriate insurance and shall upon request provide satisfactory evidence to such effect.

9. CONFIDENTIALITY

9.1. Service Provider acknowledges that all the business and technical information, specifications, data, know-how documentation, advice and any other information concerning IKEA Company "**Confidential Information**" to which it has access by virtue of providing the Maintenance Services hereunder shall remain the exclusive property of IKEA Company, and are secret and confidential in character. Service

Provider shall not use the Confidential Information for any purpose other than provided in this Agreement.

9.2. Service Provider shall treat all Confidential Information or other materials or data furnished to Service Provider under this Agreement, whether written or oral, as confidential, and Service Provider and its employees shall take the necessary precautions, including having its employees enter into secrecy Agreements of a form and substance approved by IKEA Company to assure that such Confidential Information or other material or data are not in any way disclosed to any third Party or Parties during or after the term of this Agreement, which obligation shall survive the termination of this Agreement for any cause whatsoever. These obligations shall not pertain to information which Service Provider can demonstrate was known to it at the time of disclosure by IKEA Company, was or becomes generally known to the public through no fault of Service Provider, or is subsequently legally disclosed to Service Provider by a third Party under no obligation of confidence to IKEA Company, or who was in the rightful possession of Service Provider prior to disclosure by IKEA Company.

9.3. The obligations of Service Provider under this Section 9 shall survive the termination or expiration of this Agreement.

10. DATA AND INFORMATION SECURITY

10.1. Service Provider shall only process IKEA Company information, whether operational, financial or other data relating to the business or customers of IKEA Company, including personal data (collectively "**Data**"), in accordance with any and all applicable laws and regulations and in accordance with any supplementary instructions from IKEA Company. Service Provider shall implement the appropriate technical and organisational measures to protect the Data that is processed. The measures shall provide a level of security that is sufficient and appropriate having regard to (i) the requirements under applicable law; (ii) the technical possibilities available; (iii) what it would cost to implement the measures; (iv) the special risks that exist with processing of Data, and (v) how sensitive the Data processed really is. IKEA Company shall have the right to audit any aspect of Service Provider's compliance.

11. TERM AND TERMINATION

11.1. This Agreement shall become effective from upon signing by both parties and will remain valid for a fixed period of 36 (Thirty six) months from the date first mentioned (Effective date). Either Party may terminate this Agreement to the end of the fixed period by notice to the other Party at the latest three (3) months prior to the end of such fixed period. If the Agreement has not been terminated by either Party, it shall be automatically renewed to be valid until terminated by either party giving three (3) months written notice on the same terms and conditions, except Specification & Prices mentioned in Appendix 1

11.2. In the event that a Party (i) has declared itself insolvent (ii) is subject to any liquidation, bankruptcy, receivership or trustee proceedings (iii) terminates or suspends its business activities, or (iv) commits a breach of any of the provisions set forth in the Agreement or the Purchase Order which, as determined by the non-defaulting Party, is not cured within thirty (30) days after receipt of notice thereof, the non-defaulting Party to the Agreement shall be entitled to terminate th

Agreement in whole or in part to expire immediately upon notice and the non-defaulting Party to the Purchase Order shall be entitled to cancel the Purchase Order.

11.3. Expiration or termination of the Agreement shall not relieve the Service Provider and IKEA Company respectively of their then outstanding and unfulfilled obligations or liabilities under the Agreement or any Purchase Order. Any and all terms and conditions of the Agreement that expressly or by their nature and context are intended to survive termination shall so survive, including but not limited to Sections 6,8,9,10,11.3 and 19.

12. NOTICES

Any notice required or permitted to be given by either Party under the Agreement shall be made in writing and delivered through email and by (i) personal delivery or (ii) courier or (iii) sent by registered mail or (iv) (i) if delivered by personal delivery, upon receipt; (ii) if sent by courier, the date of receipt; (iii) if sent by registered mail, five (5) business days from the date of dispatch and by e-mail to the address of the other Party as stated above and shall be deemed received. A Party may change its address details by written notice to the other Party in accordance with the procedure set out above.

13. AMENDMENT TO Agreement

IKEA Company and Service Provider may amend the Agreement by mutual Agreement in writing during the term of this Agreement if there exists a sufficient cause.

14. NO WAIVER

Failure of either Party to enforce any of the provisions of this Agreement, or of any rights with respect thereto, or failure to exercise any election provided for herein, shall in no way be considered a waiver of such provisions, rights or elections, or in any way affect the validity of this Agreement. The failure by any Party to enforce any of such provisions, rights, or elections shall not prejudice such Party from later enforcing or exercising the same or any other provisions, rights or elections which it may have under this Agreement.

15. INVALIDITY

If any provision of this Agreement, or any portion thereof, is subsequently held to be invalid or unenforceable under any applicable statute or rule of law, then that provision or portion notwithstanding, this Agreement shall remain in full force and effect and such provision or portion shall be deemed omitted and this Agreement shall be construed as if such invalid or unenforceable provision or portion had not been contained herein.

16. NON-ASSIGNABILITY

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This Agreement shall be binding on the Parties and their respective successors and permitted assignees. The Parties shall not sell, transfer, assign, convey or otherwise dispose of any right or obligation under this Agreement without the prior written consent of the other Party.

17. FORCE MAJEURE

17.1. Force Majeure or Force Majeure Event shall mean an acts of God, acts of Government, riots, wars, pandemics, strikes, lockouts, quarantine situation, accidents in transportation or any other event or causes of a similar or dissimilar nature beyond the control of either party due to which a party is unable to perform its obligation under the Agreement. It is hereby clarified that economic hardship to either party shall not be considered as Force Majeure Event and therefore party shall be obligated to perform its obligation in such event.

17.2. The failure or delay of either Party to perform is obligation under this Agreement, solely by means of Force Majeure Event shall not be deemed to be a breach of this Agreement; provided, however, that the Party so prevented from complying herewith shall continue to take all actions within its power to comply as fully as possible herewith, to minimise the impact of such force majeure event and to minimise the losses, which may be incurred by IKEA, due to such force majeure event.

17.3. Except where the nature of the event shall prevent it from doing so, the Party suffering such force majeure shall notify the other Party in writing within 3 working days after the occurrence of such Force Majeure Event and shall in every instance, to the extent it is capable of doing so, use its best efforts to remove or remedy such cause with all reasonable dispatch.

17.4. In case of failure to perform the obligation by a party due to force measure event, the time for performing shall be extended by the period of delay resulting from such force majeure.

17.5. In case of delay in performing the obligation by either party due to force majeure event exceed 30 days, the other party shall be entitled to terminate this agreement or any purchase order issued under this agreement. However, IKEA shall be liable to make payment with respect to such work which has been performed by Service Provider and acknowledged by IKEA.

18. MISCELLANEOUS

This Agreement replaces any previous written or oral Agreements between the Parties on the subject matter hereof. No modification, amendment, alteration or waiver of any provision thereof will be binding upon the Parties unless made in writing and signed by both Parties by their duly authorized representatives. In case of conflicts, the terms and conditions set out in this main document shall prevail over the Appendices and the Appendices shall prevail in the order listed above.

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19. GOVERNING LAW/JURISDICTION

19.1. The Agreement and any Purchase Order shall in all respects be governed by and construed in accordance with the substantive laws of the place of registered office of IKEA Company.

19.2. Any dispute, controversy or claim arising out of or in connection with the Agreement or any Purchase Order or the breach, termination or invalidity thereof, shall be settled by the courts of the place of registered office of IKEA Company.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed in two counterparts to come into effect at the date and the place first mentioned (Effective date) and subscribed their names and seals thereon, and each of the Parties shall maintain its copy.

FOR IKEA INDIA PRIVATE LIMITED

Signature : _____

Name :

Title :

Signature : _____

Name :

Title :

FOR NIHVA TECHNOLOGIES PVT. LTD.

Signature : _____

Name : VIJAY M TARAK

Title : DIRECTOR

Signature : _____

Name :

Title :

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